

23STLC01127 23STLC01127

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 23STLC01127 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Nationwide Agribusiness

Ins NAIC's Renewed Motion to Enforce Settlement is denied.

ANALYSIS:

On February 14,

2023, Plaintiff Nationwide Agribusiness Ins NAIC ("Plaintiff") filed this

action for common counts against Defendants William Highsmith aka Wilia

Highsmith 3 ("Defendant Highsmith") and Osborne Williams aka Osborne T.

Williams Jr. aka Williams Osbourne aka Osbourne Williams ("Defendant Williams").

Plaintiff filed a Notice of Settlement of Entire Case on February 27, 2023.

On November 18,

2024, Plaintiff filed a Stipulation and Order for Dismissal. The Court entered

the stipulation and dismissed the action on the same day. (Stip and Order,

filed 11/18/24.) On November 26, 2025,

Plaintiff filed a Motion to Enforce Settlement. The Court denied the Motion to Enforce Settlement on January 28, 2026, citing that Plaintiff was not a party to the settlement agreement. (Minute Order, 01/28/26.) Instead, the settlement was signed by Defendants and by “Rich Gallion, Authorized Agent” on behalf of “Nationwide Mutual Insurance Company.” (Ibid.)

On April 1, 2026, Plaintiff filed an Amended Stipulation, Settlement Agreement, and Release. Plaintiff then filed the instant Motion to Enforce Settlement on April 2, 2026. For reasons unknown, Plaintiff re-filed the same Motion on May 15, 2026. The Motion was served on Defendants by first-class mail on March 31, 2026. To date, no opposition has been filed.

Discussion

The instant Motion to Enforce Settlement makes a renewed application to enforce the parties’ settlement agreement pursuant to Code of Civil Procedure section 664.6. Plaintiff previously sought the same relief in the Motion to Enforce Settlement filed on November 26, 2025.

When a party seeks the same relief that was previously denied, it must bring a renewed motion pursuant to Code of Civil Procedure section 1008, subdivision (b). (California Correctional Peace Officers Ass’n v. Virga (2010) 181 Cal.App.4th 30, 43, fn. 11; see also Tate v. Wilburn (2010) 184 Cal.App.4th 150, 156-157.)

When a motion has been denied in whole or in part, the moving party may apply again for the same relief at a later time only upon “new or different facts, circumstances or law.” (Code Civ. Proc., § 1008, subd. (b); see *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 969-970.) Also, the statute requires the moving party “to show a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence,” the purpose of which is to incentivize parties “to efficiently marshal their evidence.” (*Baldwin v. Home Sav. of America* (1997) 59 Cal.App.4th 1192, 1199 [citing *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 689-690].)

The instant

Motion to Enforce Settlement is neither brought pursuant to Code of Civil Procedure section 1008, nor fulfills its statutory requirements. The supporting declaration of Plaintiff's counsel fails to address the earlier Motion to Enforce Settlement and related order dated January 28, 2026, demonstrate new or different facts, circumstances or law, nor provide a satisfactory explanation for failing to provide the evidence earlier. Therefore, the Court lacks the jurisdiction to grant the renewed Motion to Enforce Settlement. (Code Civ. Proc., § 1008, subd. (e); see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1106.)

Even if the

Court were to consider the renewed Motion on the merits, the supporting

declaration is too confusing to credibly attest to the payments made by

Defendants. Plaintiff's counsel declares that Defendants agreed to pay the principal

sum of \$13,086.73, plus filing fees in the sum of \$740.00, plus mandatory

E-filing fees in the sum of \$25.90, for the total sum of \$13,852.63. (Motion,

Smith Decl., ¶5 and Exh. 1 at ¶4.) Defendants agreed to pay the settlement

amount through monthly payments of \$96.19 starting on February 27, 2023 until

paid in full. (Ibid.) According to Plaintiff's counsel, Defendants only

made payments totaling \$2,396.79, "for a total judgment amount of \$13,554.13." (Id.

at ¶6.) Plaintiff's counsel then

contradicts this statement by declaring that the judgment should be calculated

based on payments received toward the principal in the sum of \$2,300.62, for a

total of \$13,546.11 now due and owing. (Id.

at ¶¶7-8.) Plaintiff also seeks pre-judgment interest, although the stipulation does not address entitlement to interest, nor does Plaintiff's motion explain how the interest claimed was calculated. Based on the Court's review of Exhibit 1, Defendants'

default would require them to pay only the principal balance of \$13,086.73, plus

first appearance fees, less payments received.

(Exh. 1, ¶6.) Given these inconsistencies, the Court finds

the supporting declaration cannot be relied upon to accurately set forth the

amount now due under the settlement agreement, and that the amount currently

sought in the proposed judgment is not supported.

Conclusion

Therefore, Plaintiff Nationwide

Agribusiness Ins NAIC's Renewed Motion to Enforce Settlement is denied.

Moving party to give notice.